

HOUSE No. 3945

The Commonwealth of Massachusetts

PRESENTED BY:

Judith A. Garcia

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote urban agriculture in environmental justice communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Judith A. Garcia</i>	<i>11th Suffolk</i>	<i>1/16/2025</i>

HOUSE No. 3945

By Representative Garcia of Chelsea, a petition (accompanied by bill, House, No. 3945) of Judith A. Garcia relative to urban agriculture in environmental justice communities. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote urban agriculture in environmental justice communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (d) of section 29A of chapter 23G of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by striking out clause (12) and
3 inserting in place thereof the following clause:-

4 (12) preference shall be given to projects located within an environmental justice
5 municipality or located within 1 mile of an environmental justice municipality, as defined in
6 section 62 of chapter 30.

7 SECTION 2. Section 62 of chapter 30 of the General Laws, as so appearing, is hereby
8 amended by inserting after the definition of “Environmental burdens” the following definition:-

9 “Environmental justice municipality”, a municipality that meets 1 or more of the
10 following criteria: (i) the annual median household income is not more than 65 per cent of the
11 statewide annual median household income; (ii) minorities comprise 40 per cent or more of the
12 population; (iii) 25 per cent or more of households lack English language proficiency; or (iv)

13 minorities comprise 25 per cent or more of the population and the annual median household
14 income of the municipality in which the neighborhood is located does not exceed 150 per cent of
15 the statewide annual median household income; provided, that the secretary may determine that a
16 municipality shall not be designated an environmental justice municipality upon finding that: (A)
17 the annual median household income of the municipality is greater than 125 per cent of the
18 statewide median household income; (B) a majority of persons age 25 and older in the
19 municipality have a college education; (C) the municipality does not bear an unfair burden of
20 environmental pollution; and (D) the municipality has more than limited access to natural
21 resources, including open spaces and water resources, playgrounds and other constructed outdoor
22 recreational facilities and venues.